

USDC SDNY
DOCUMENT
ELECTRONICALLY FILED
DOC #:
DATE FILED: JAN 21 2014

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

PORFIRIO DIAZ, FURCY TAVERAS, and
MARCOS GUZMAN JR.

Plaintiffs,

-against-

**JUDGMENT UNDER
FED. R. CIV. P. 68**

THE CITY OF NEW YORK, POLICE OFFICER
EVAN JOHNSON, shield # 11101, POLICE
OFFICER JOHN REIBER, shield #7101,
SERGEANT SASHA ROSEN, shield #5061,
POLICE OFFICER JOHN FERRARA, shield #2628
POLICE OFFICERS JANE/JOHN DOE(S), #s 1-10,

13-CV-1169 (KBF)

Defendants.

WHEREAS, plaintiff PORFIRIO DIAZ commenced this action by filing a complaint on

or about February 21, 2013 alleging violation of his constitutional and common law rights; and

WHEREAS, on December 6, 2013, pursuant to Rule 68 of the Federal Rules of Civil Procedure, defendants served an Offer of Judgment on plaintiff PORFIRIO DIAZ allowing plaintiff to take judgment against defendant City of New York for the sum of TEN THOUSAND AND ONE DOLLARS (\$10,001.00), together with reasonable costs, expenses and attorney's fees accrued to that date for plaintiff's federal claims, which offer the plaintiff did accept in writing on December 20, 2013, and that said offer and notice of acceptance with proof of service thereof having been filed by the plaintiff;

NOW, IT IS HEREBY ORDERED, ADJUDGED AND DECREED THAT:

1. Pursuant to Rule 68 of the Federal Rules of Civil Procedure, plaintiff PORFIRIO DIAZ takes judgment against defendant City of New York for the sum of TEN THOUSAND AND ONE DOLLARS (\$10,001.00), plus reasonable attorneys' fees, expenses and costs arising out of his claims asserted pursuant to 42 U.S.C. §1983.

2. This judgment is in full satisfaction of all federal and state law claims or rights that plaintiff PORFIRIO DIAZ may have to damages, or any other form of relief, arising out of the alleged acts or omissions of defendants THE CITY OF NEW YORK, POLICE OFFICER EVAN JOHNSON, shield # 11101, POLICE OFFICER JOHN REIBER, shield #7101, SERGEANT SASHA ROSEN, shield #5061, POLICE OFFICER JOHN FERRARA, shield #2628, and the individuals named herein as “POLICE OFFICERS JANE/JOHN DOE(S), #s 1-10,” or any official, employee, or agent, either past or present, of the City of New York, or any agency thereof, in connection with the facts and circumstances that are the subject of this action.

3. This judgment shall not to be construed as an admission of liability by any defendant, or any official, employee, or agent of the City of New York, or any agency thereof; nor is it an admission that plaintiff has suffered any damages.

4. Plaintiff PORFIRIO DIAZ’s acceptance of the Rule 68 Offer of Judgment acted to release and discharge defendants THE CITY OF NEW YORK, POLICE OFFICER EVAN JOHNSON, shield # 11101, POLICE OFFICER JOHN REIBER, shield #7101, SERGEANT SASHA ROSEN, shield #5061, POLICE OFFICER JOHN FERRARA, shield #2628, and the individuals named herein as “POLICE OFFICERS JANE/JOHN DOE(S), #s 1-10,” their successors or assigns; and all past and present officials, employees, representatives and agents of the City of New York, or any agency thereof, from any and all claims that were or could have been alleged by plaintiff PORFIRIO DIAZ in the above-referenced action.

5. Plaintiff PORFIRIO DIAZ’s acceptance of the Rule 68 Offer of Judgment acted to waive plaintiff’s right to any claim for interest on the amount of the judgment and acted as an agreement between plaintiff and defendants that payment of the sum due plaintiff within ninety days of the date of acceptance of the Rule 68 Offer of Judgment, to wit, on or about March 20,

2014, shall be a reasonable time for such payment, unless plaintiff received medical treatment in connection with the underlying claims in this case for which Medicare has provided, or will provide, payment in full or in part. If plaintiff is a Medicare recipient who received medical treatment in connection with the claims in this case, the ninety (90) day period for payment shall start to run from the date plaintiff submits to Counsel for Defendants a final demand letter from Medicare.

6. Acceptance of the Rule 68 Offer of Judgment constituted plaintiff's agreement to resolve any claim that Medicare may have for reimbursement of conditional payments it has made as secondary payer and a Medicare Set-Aside Trust shall be created, if required by 42 U.S.C. §1395y(b) and 42 C.F.R. §§411.22 through 411.26, and that plaintiff holds harmless defendants for any past and/or future Medicare payments, presently known or unknown, made in connection with this matter.

7. That, by January 22, 2014, plaintiff's counsel shall submit a Request to Tax Costs and his petition for an award of attorney's fees under 42 U.S.C. §1988.

Dated: New York, New York

So ordered
1/21/14 K. B. Jones
U.S.D.J.
djs

THIS DOCUMENT WAS ENTERED
ON THE DOCKET ON _____